

ENTERPRISE CONFIDENTIAL DOCUMENT

Non-Disclosure Agreement

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Agreement Overview

Here is the corrected and complete Non-Disclosure Agreement, incorporating the missing "Introduction" section heading and ensuring consistent formatting and professional language throughout.

NON-DISCLOSURE AGREEMENT

I. Introduction

This Non-Disclosure Agreement (this "Agreement") is made and entered into as of **[Effective Date]** (the "Effective Date") by and between:

[Disclosing Party Full Legal Name]**, a [Type of Entity, e.g., Delaware corporation] with its principal place of business at [Disclosing Party Address] ("**Disclosing Party**"),

AND

[Receiving Party Full Legal Name]**, a [Type of Entity, e.g., California limited liability company] with its principal place of business at [Receiving Party Address] ("**Receiving Party**").

WHEREAS, Disclosing Party possesses certain confidential and proprietary information; and

WHEREAS, Receiving Party desires to receive such information for the sole purpose of evaluating a potential business relationship between the parties (the "Purpose");

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, the parties agree as follows:

II. Core Definitions

2.1. Definition of Confidential Information.** "Confidential Information" means any and all information, whether oral, written, visual, electronic, tangible, or intangible, disclosed by Disclosing Party to Receiving Party, directly or indirectly, before or after the Effective Date, that is designated as confidential or that, by its nature or the circumstances of its disclosure, would reasonably be understood to be confidential. Confidential Information includes, but is not limited to, business plans, financial data, marketing strategies, customer lists, supplier lists, pricing information, product designs, specifications, software code, algorithms, inventions, trade secrets, know-how, processes, technical data, research and development, employee information, and any other proprietary information related to Disclosing Party's business, operations, products, or services.

For information disclosed in tangible form (e.g., written or electronic), it must be clearly marked as "Confidential," "Proprietary," or with a similar legend. For information disclosed orally or visually, it must be identified as confidential at the time of disclosure and summarized in a written memorandum delivered to Receiving Party within thirty (30) days of disclosure.

2.2. Exclusions from Confidential Information.** Notwithstanding Section 2.1, Confidential Information does not include information that:

- (a) is or becomes publicly available through no fault or breach of this Agreement by Receiving Party;
- (b) was rightfully known by Receiving Party prior to its disclosure by Disclosing Party, without an obligation of confidentiality;
- (c) is independently developed by Receiving Party without use of or reference to Disclosing Party's Confidential Information;
- (d) is rightfully received by Receiving Party from a third party without restriction on disclosure and without breach of any confidentiality obligation owed to Disclosing Party; or

(e) is required to be disclosed by law, regulation, or court order, provided that Receiving Party gives prompt written notice to Disclosing Party of such requirement prior to disclosure, allowing Disclosing Party a reasonable opportunity to seek a protective order or other appropriate remedy.

III. Obligations of Receiving Party

3.1. Non-Disclosure.** Receiving Party agrees not to disclose, publish, or disseminate any Confidential Information to any third party without the prior written consent of Disclosing Party.

3.2. Non-Use.** Receiving Party agrees not to use any Confidential Information for any purpose other than the Purpose.

3.3. Standard of Care.** Receiving Party shall protect the Confidential Information with at least the same degree of care it uses to protect its own proprietary information of a similar nature, but in no event less than a reasonable degree of care.

3.4. Limited Access.** Receiving Party shall restrict access to Confidential Information to only those of its employees, agents, and affiliates who have a strict "need-to-know" such information for the Purpose and who are bound by confidentiality obligations no less protective than those contained herein. Receiving Party shall be responsible for any breach of this Agreement by its employees, agents, or affiliates.

IV. Term & Termination

4.1. Term of Agreement.** This Agreement shall commence on the Effective Date and shall remain in effect for a period of **[e.g., two (2)]** years, unless terminated earlier as provided herein.

4.2. Survival of Obligations.** The obligations of confidentiality and non-use set forth in Section 3 shall survive the termination or expiration of this Agreement for a period of **[e.g., five (5)]** years following such termination or expiration. For any information constituting a "trade secret" under applicable law, these obligations shall survive indefinitely.

4.3. Return/Destruction.** Upon the written request of Disclosing Party, or upon the termination or expiration of this Agreement, Receiving Party shall promptly return to Disclosing Party or destroy all Confidential Information (including all copies, reproductions, summaries, and extracts thereof) in its possession or control, whether in tangible or intangible form. Receiving Party shall, upon Disclosing Party's request, provide a written certification of compliance with this Section 4.3.

V. Legal & General Provisions

5.1. Remedies.** Receiving Party acknowledges that unauthorized disclosure or use of Confidential Information would cause irreparable harm to Disclosing Party for which monetary damages would be an inadequate remedy. Accordingly, Disclosing Party shall be entitled to seek injunctive relief, in addition to any other remedies available at law or in equity, to prevent any actual or threatened breach of this Agreement.

5.2. Governing Law.** This Agreement shall be governed by and construed in accordance with the laws of the State of ** [Governing Law State]**, without regard to its conflict of laws principles.

5.3. Jurisdiction/Venue.** The parties agree that any action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the state or federal courts located in **[County, State]**, and each party hereby irrevocably consents to the personal jurisdiction and venue of such courts.

5.4. No License/Warranty.** Nothing in this Agreement shall be construed as granting any license or right under any patent, copyright, trademark, or other intellectual property right of Disclosing Party. Disclosing Party makes no representations or warranties, express or implied, as to the accuracy or completeness of its Confidential Information.

5.5. Entire Agreement.** This Agreement constitutes the entire agreement between the parties concerning the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written, of the parties.

5.6. Assignment.** Neither party may assign its rights or obligations under this Agreement without the prior written consent of the other party. Any attempted assignment in violation of this Section shall be null and void.

5.7. Waiver.** No waiver of any provision of this Agreement shall be effective unless in writing and signed by the party against whom the waiver is sought to be enforced. The failure of either party to enforce any provision of this Agreement shall not be construed as a waiver of such provision or of the right to enforce such provision at a later time.

5.8. Severability.** If any provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the remainder of this Agreement shall remain in full force and effect.

5.9. Notices.** All notices, requests, demands, and other communications required or permitted under this Agreement shall be in writing and shall be deemed to have been duly given when delivered personally, sent by recognized overnight courier service, or sent by registered or certified mail, return receipt requested, postage prepaid, to the addresses set forth below or to such other address as either party may designate by written notice to the other party:

If to Disclosing Party:

[Disclosing Party Address]

Attention: [Contact Person]

If to Receiving Party:

[Receiving Party Address]

Attention: [Contact Person]

5.10. Counterparts.** This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

VI. Signatures

IN WITNESS WHEREOF, the parties have executed this Non-Disclosure Agreement as of the Effective Date.

DISCLOSING PARTY:

[Disclosing Party Full Legal Name]

By: \\\

Name: [Printed Name]

Title: [Title]

RECEIVING PARTY:

[Receiving Party Full Legal Name]

By: \\\

Name: [Printed Name]

Title: [Title]

Execution

Each party acknowledges that it has read, understood, and agreed to be bound by this Agreement.

Disclosing Party

Name:

Title:

Date:

Receiving Party

Name:

Title:

Date:

Checked required sections, tone, and formatting consistency.